

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 27-004

**Amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code
(Eligibility to Vote, Application for Registration)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures regarding tribal elections, and

WHEREAS, the Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-301

**ELIGIBILITY TO VOTE, APPLICATION FOR
REGISTRATION.**

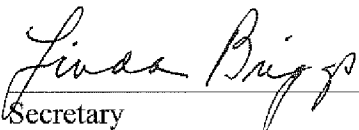
B. The Election Secretary/Tribal Registrar shall compare the completed voter registration application with the Nation's citizenship database to determine eligibility. A Chickasaw descendant (traced from names that appear on the Final Dawes Rolls) who is registered to vote with another Indian tribe is ~~not eligible~~ ineligible to register as a Chickasaw Voter unless he terminates his voting rights with that tribe and provides official evidence of that termination. To become a registered Voter of the Nation, an applicant must: ~~one must have a CDIB on file with the Nation's CDIB office, or possess a CDIB card issued by another agency showing Chickasaw blood or have been issued an official Chickasaw Nation citizenship card as reflected in the Chickasaw Nation citizenship database and must be 18 years of age or older:~~

1. be eighteen (18) years of age or older; and
2. have been issued an official Chickasaw Nation citizenship card as reflected in the Chickasaw Nation citizenship database.”

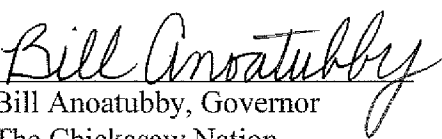
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 16, 2010, by a vote of 9 ayes, 1 nays, 1 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 16 2010

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 27-004
Amendments to Title 8, Chapter 3 Section 8-301 of the Chickasaw Nation Code
(Eligibility to Vote, Application for Registration)

Explanation: This resolution amends Section 8-301 of the Chickasaw Nation Code regarding voter eligibility. The new language will require new Chickasaw voters to have previously been issued a tribal citizenship card. The resolution was received by the Legislative office on March 31, one day before the deadline provided by Paragraph 16-205.B.2 of the Chickasaw Nation Code.

If this resolution is adopted, the new paragraph would read as follows:

“SECTION 8-301 **ELIGIBILITY TO VOTE, APPLICATION FOR**
REGISTRATION.

B. The Election Secretary/Tribal Registrar shall compare the completed voter registration application with the Nation's citizenship database to determine eligibility. A Chickasaw descendant (traced from names that appear on the Final Dawes Rolls) who is registered to vote with another Indian tribe is ineligible to register as a Chickasaw Voter unless he terminates his voting rights with that tribe and provides official evidence of that termination. To become a registered Voter of the Nation, an applicant must:

1. be eighteen (18) years of age or older; and
2. have been issued an official Chickasaw Nation citizenship card as reflected in the Chickasaw Nation citizenship database”

Presented By: Election Rules and Procedures *Ad Hoc* Committee